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SAJ Leonen: Despite Risks, Legal System Should Keep Abreast With AI Developments

August 6, 2024



Despite the dangers posed by the use of artificial intelligence (AI), Supreme Court Senior Associate Justice Marvic M.V.F. Leonen said the path moving forward is for the Philippine legal system to keep up with emerging technology while working to protect people's rights.

At a gathering of tech experts during the *Manila Tech Summit 2024* at the Manila Marriott Hotel in Pasay City on Tuesday, SAJ Leonen spoke about the need to balance the benefits of the use of AI and new technology will bring to the courts while also making sure that safeguards are in place to avoid violations of rights.

"The legal profession, in particular, has not fully grasped the possibilities of artificial intelligence available to it," he said during his keynote speech. "But instead of shying away from this challenge, the only way forward is to keep abreast with these developments to come up with more definitive rules in the use of AI and similar technologies."

"The only way to truly immerse the legal profession in the use of artificial intelligence...would be to test its limits while revising as we go along to keep up. The key idea to keep in mind is the

responsible use of AI and other recent innovations, as there is much to be realized in terms of their potential and drawbacks.

He noted that one of the biggest challenges in terms of regulation is addressing cybersecurity concerns. Digitalized courts, he said, could face at least a thousand attacks from hackers a day. And while there are existing laws, such as the *Data Privacy Act* and *Cybercrime Prevention Act*, these are not enough to keep up with fast-paced developments in AI handling data, he said. “A transformation of our own judicial system geared towards AI advancement means working together with IT professionals who know what we are up against,” said SAJ Leonen, who noted the Philippine courts’ shift to a more digitalized judicial system.

Under the Strategic Plan for Judicial Innovations 2022-2027, the Philippine Supreme Court has introduced key reforms to digitalize the internal and external processes of the courts – from introducing videoconference hearings to soon requiring mandatory electronic filing of pleadings.

Another challenge to AI regulation, he said, is the issue of AI’s reliability in the face of the proliferation of forms of disinformation—like images, audio, and videos that are “deepfakes,” which are produced by AI-powered software. He called on the legal researchers and other law practitioners to be cautious and sift through these sources of data to verify the legitimacy of outputs. “AI may have difficulty filtering what is real and what is not, thus becoming prone to inaccuracies and doubling instead of decreasing the work that needs to be done in legal research and writing,” he added.

The use of AI also brings with it issues on intellectual property against AI-generated content. “As artificial intelligence begins to encroach on the workspaces of creatives and other makers, laws to protect their rights need to adapt and articulate the limits of intellectual property *vis-a-vis* artificial intelligence,” he said.

Highlighting the issue of algorithmic bias, SAJ Leonen gave as examples chatbots and other Natural Language Processing tools used for legal research and writing, which he pointed out were developed by people and groups that have their own interests in mind.

Lastly, SAJ Leonen raised the question of who will be held accountable for AI’s actions in trial cases. He drew attention to the underlying assumption that AI has minimal, if not being free of, human error. “This entails working with the global legal community in the regulation of artificial intelligence, and local laws will inevitably follow suit in responding and adapting to increased AI usage across all industries,” he advocated.

SAJ Leonen stressed, “[w]hat we would like to avoid is an extreme dependence on artificial intelligence, resulting in lazy outputs that affect the administration of justice.” He added, “[i]t sounds like a complex problem, but the execution of integrating AI in the law may just be doable. We can maintain this optimism while acknowledging the possible risks posed by artificial intelligence to the legal profession.”

SAJ Leonen assured court personnel that despite the inevitable changes brought about by technology, they are monitoring court activity to see how they are functioning *vis-a-vis* the new technology.

The theme for the two-day Summit is *Unlocking AI: Shaping the Philippines’ Tech Future*. (Courtesy of the Supreme Court Public Information Office)



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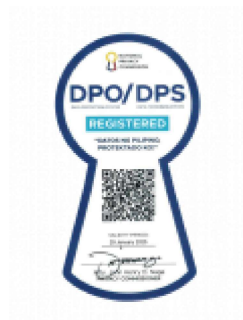
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